



United States
Attorney's Office
Northern District of Georgia



Pain-Management Doctor and Medical Practice to Pay \$3.5 Million to Resolve False Claims Act and Control Substances Act Allegations

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For Immediate Release

U.S. Attorney's Office, Northern District of Georgia

ATLANTA – Dr. Kamal Kabakibou and his medical practice, Kamal Kabakibou, M.D., P.C., doing business as “The Center for Pain Management,” have settled claims under the False Claims Act (“FCA”) and the Controlled Substances Act (“CSA”) arising from their alleged billing for medically unnecessary testing and for pre-signing opioid prescriptions to be dispensed by a nurse practitioner while Dr. Kabakibou was out of the country. As part of the settlement, they will jointly pay \$3.5 million to the United States and have agreed to submit regular monitoring reports to the Drug Enforcement Administration for the next five years. Dr. Kabakibou and his medical practice have also entered into a three-year integrity agreement with the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG), which includes an annual claims review by an independent review organization.

“Our office will continue to insist that dangerous opioids be properly dispensed and that federal healthcare dollars be wisely spent,” said Acting U.S. Attorney Richard S. Moultrie, Jr. “On behalf of those healthcare providers who correctly bill for medical procedures, and for the patients who rely on the safety net of federal healthcare programs, our office will continue to work vigorously with our federal agencies and law enforcement partners to identify and hold accountable those providers who engage in misconduct.”

"Health care professionals are entrusted with accurately billing federal health care programs and prescribing controlled substances responsibly," said Special Agent in Charge Kelly J. Blackmon of the U.S. Department of Health and Human Services, Office of Inspector General (HHS-OIG). "HHS-OIG remains committed to collaborating with our law enforcement partners to hold accountable those who engage in fraud schemes that exploit federal health care programs and jeopardize patient safety."

"Medical providers who submit false claims to the U.S. Department of Labor's (DOL) Office of Workers' Compensation Programs (OWCP) for medically unnecessary services place illegal profits above patient safety," said Mathew Broadhurst, Special Agent-in-Charge, Southeast Region, U.S. Department of Labor Office of Inspector General. "We will continue to work with our law enforcement partners and OWCP to protect the integrity of DOL's worker compensation programs."

"This settlement should serve as a strong deterrent to healthcare practitioners who abandon their Hippocratic Oath while seeking to exploit and defraud TRICARE, the military healthcare system relied on by our servicemembers, retired military members, and their families," said Special Agent in Charge Jason Sargenski, Department of Defense, Office of Inspector General, Defense Criminal Investigative Service (DCIS), Southeast Field Office. "DCIS, alongside our law enforcement partners, will continue to aggressively investigate allegations of healthcare fraud that affect the Department of Defense and put its personnel at risk."

"Dr. Kamal Kabakibou had a responsibility to issue controlled substance prescriptions for a legitimate medical purpose, while acting in the usual course of his professional practice, in order to prevent the diversion of dangerous prescription drugs, especially opioids," said Jae Chung, Acting Special Agent in Charge of the DEA Atlanta Division. "The moment he decided to carelessly distribute drugs and ignore his corresponding responsibility, he became nothing more than a dangerous drug trafficker."

"Medicare beneficiaries should never have to question whether treatment recommendations are based on their doctors' best financial interests rather than their best medical advice," said FBI Atlanta Acting Special Agent in Charge Sean Burke. "This case is further proof that the government will vigorously pursue those who attempt to cheat the taxpayer-funded system that pays for medical care for millions of Americans."

Dr. Kabakibou operates pain-management clinics in Atlanta and Blue Ridge, Georgia. The clinics use an in-house laboratory to conduct urine drug tests. The government alleges that Dr. Kabakibou performed medically unnecessary and duplicative laboratory testing on patients and submitted claims for those tests to federal health insurance (including Medicare, TRICARE, and the Department of Labor). The government further alleges that when Dr. Kabakibou travelled abroad, which he did regularly, he pre-signed prescriptions and left them for his nurse practitioners to dispense. Many of these prescriptions were for Schedule II controlled substances, including opioids, which could not be dispensed by unsupervised nurse practitioners.

The CSA was enacted by Congress to deter the illegal importation, manufacture, distribution, possession, and improper use of controlled substances, including prescription medications. The CSA prohibits DEA registrants from issuing prescriptions outside the usual course of professional practice.

State law prohibited pre-signing prescriptions. DEA registrants who issue improper prescriptions are subject to civil monetary penalties for each violation.

The case was investigated by the U.S. Attorney’s Office for the Northern District of Georgia, the U.S. Department of Health and Human Services, Office of the Inspector General, the Department of Defense, Office of Inspector General, Defense Criminal Investigative Service, the Federal Bureau of Investigation, the Drug Enforcement Administration and the U.S. Department of Labor, Office of the Inspector General.

The civil settlement was reached by Assistant U.S. Attorney Anthony DeCinque. The civil case was also investigated by former Assistant U.S. Attorney David O’Neal.

The claims resolved by the settlement are allegations only, and there has been no determination of liability.

For further information please contact the U.S. Attorney’s Public Affairs Office at USAGAN.PressEmail@usdoj.gov or (404) 581-6016. The Internet address for the U.S. Attorney's Office for the Northern District of Georgia is <http://www.justice.gov/usao-ndga>.

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